

STATE OF NEW YORK

6127--A

2025-2026 Regular Sessions

IN SENATE

March 5, 2025

Introduced by Sens. WEIK, MATTERA -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring CPR certified cafeteria monitors to be present in school cafeterias during lunchtimes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 "Stella's law".

3 § 2. The education law is amended by adding a new section 3001-e to
4 read as follows:

5 § 3001-e. First aid, CPR, and Heimlich certification requirement. 1.
6 For the purposes of this section: (a) "Cardiopulmonary resuscitation
7 (CPR)" shall have the same meaning as in subdivision three of section
8 twenty-nine hundred ninety-four-a of the public health law.

9 (b) "Heimlich" or "Heimlich maneuver" shall mean a first-aid procedure
10 for dislodging an obstruction from a person's windpipe in which a sudden
11 strong pressure is applied on the abdomen, between the navel and the rib
12 cage.

13 2. In addition to any provision of law or rule or regulation of the
14 department related to the requirements necessary for teachers and staff
15 within New York schools, it shall be required that all adult cafeteria
16 monitors of the school be certified in first aid, CPR, and the Heimlich
17 maneuver and be present and monitoring students in the school's cafete-
18 ria during all lunchtimes of primary and secondary schools. Such train-
19 ing shall be conducted during an employee's regular work hours, and
20 employees shall receive their regular rate of pay for all time spent in
21 such training.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10193-06-5

1 § 3. The state education department shall prepare and distribute to
2 all schools the New York state department of health First Aid for Chok-
3 ing poster, demonstrating the proper administration of the Heimlich
4 maneuver for use in choking emergencies. Such posters shall be promi-
5 nently displayed in areas where food is consumed or served within the
6 school, including cafeterias, staff lounges, and other eating areas.
7 § 4. This act shall take effect on the first of July next succeeding
8 the date on which it shall have become a law. Effective immediately, the
9 addition, amendment and/or repeal of any rule or regulation necessary
10 for the implementation of this act on its effective date are authorized
11 to be made and completed on or before such effective date.